

Curriculum vitae



Yuriy Yashchuk

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GitHub profile:		https://github.com/YuriyYash
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Legal and economic education:		Kyiv National Taras Shevchenko University , law faculty, full-time education, speciality - jurisprudence, specialization - commercial law and process, education level - master of law
		Institute of International Relations of Kyiv National Taras Shevchenko University , speciality - international economic relations, specialization - international finance
		Institute of International Relations of Kyiv National Taras Shevchenko University , speciality - international business, specialization - international business management
Computer and information technologies education:		O. M. Beketov Kharkiv National University of Urban Economy , speciality: Automation, computer-integrated technologies and robotics; specialization: Systems engineering; educational and qualification level: Master's degree in Automation and computer-integrated technologies Educational and Scientific Institute "Ukrainian Engineering and Pedagogical Academy" of V.N. Karazin Kharkiv National University , speciality: information and measurement technologies, postgraduate studies ITEA-School , FrontEnd Development under the IT-Generation program (I have certificates JavaScript Professional and FrontEnd Professional) Scholarship program from Google & Coursera in the specialty "IT&Tech Support" (I have Google certificates)

Professional status in jurisprudence:	Barrister's certificate, issued by the BAR association
Experience:	<u>November 2004 - Present time</u> Private attorneys practice, Legal company "Professional Legal Group", Attorneys Association "Legal Concepts" • Research of foreign jurisdictions (EU, UK, US, UAE), preparation of analytical materials, participation in business planning procedures, drawing up standard forms of contracts taking into account the jurisdiction. • Contract work (drafting and proofreading of all types of agreements (including foreign economic contracts): buying and selling, supply, storage, services, rent, loan, insurance, leasing, commission, agency contracts, etc. • Legal services for IT business (drafting agreements/contracts for the provision of services (including foreign economic), Master Service Agreements, drafting of non-disclosure agreements (NDA), non-compete agreements (NCA), Terms&Conditions, Data Privacy Policy, Cookies Policy, drafting of legal documentation for providing services under the SaaS scheme, consulting on GDPR, etc.). • Legal services for online forms of doing business, marketplaces, etc. (drafting the Terms of Use of Websites (online platforms), Terms of Confidentiality, Conditions for the transfer and storage of personal data, drafting accession agreements (public offer) and other documents for legal support activities of online platforms, analysis and advice on the legislation of different countries on the validity of the applied forms in the respective jurisdictions, taking into account the transnational nature of online sales/services). • Study of regulations and procedures of the DIFC (UAE), legal services for companies registered in the DIFC, study of arbitration settlement procedures within the framework of the DIFC. • Legal support for companies providing facility management services in the field of commercial real estate (drafting and proofreading contracts for the appraisal of real estate objects, drafting a full range of contracts according to the facility management scheme). • Acting as a legal advisor on food products (Food Law Advisor) for foreign companies (preparation of legal opinions and references on legislation in the field of production and sale of food products, the use of food additives, standards for the production and labeling of specific products, packaging requirements, regulatory the content of harmful substances and specific elements in food products, checking labels for compliance with legislation (label check)). • Claim work on the collection of receivables, representation in the executive service; representation in courts of all instances of various jurisdictions (commercial, administrative courts, courts of general jurisdiction, arbitration courts) on any issues, representation in the International Commercial Arbitration Court at the Ukrainian Chamber of Commerce and Industry. • Formation/optimization of document flow in companies, maintaining archives and registers of contracts. • Consulting on legal issues regardless of the field or direction. • Registration/re-registration of legal entities and individual entrepreneurs, making changes, drawing up documentation to confirm the final beneficiaries. • Corporate legal relations (drafting constituent documents, minutes of general meetings of founders, decisions of owners, legal support for the activities of the supreme governing bodies of companies (organization and legal support for the preparation and holding of general meetings of participants, meetings of supervisory boards), drafting local regulatory documents of various directions, formalizing relations between founders and management).

	• Legal support in transactions of purchase and sale of corporate rights, real estate transactions (purchase and sale, lease, property management), legal audit of assets and documents of legal entities before acquiring corporate rights, documents and rights to real estate; legal audit of assets before acquiring companies; implementation of property protection optimization schemes. • Checking legal entities and individuals against available databases and registers (including the court register), proofreading registration and constituent documents of counterparties, focusing on the risks of the powers or legal personality of counterparties when concluding agreements. • Legal support of relations in the field of intellectual property (drafting and proofreading license and sublicense agreements, registration of trademarks, analysis of materials on infringement of intellectual property rights and development of a strategy for protection, checking brands against official databases, analysis of legislation on specific requests, judicial protection of intellectual property rights, legal protection of intellectual property rights in the context of antitrust relations, customs relations, advising on new projects involving intellectual property). • Legal support for non-residents opening a business in Ukraine, registration of foreign investments; opening of representative offices of foreign companies and their full support (including drafting regulations, local documents, personnel documentation, forms of model contracts, etc.). • Drawing up of foreign economic contracts (in different languages); registration of foreign economic contracts of financial loan in the National Bank of Ukraine; legal control of foreign economic transactions. • Development of duty regulations, of provisions, of rules, of standards, of other local acts. • Monitoring of changes in the normative legal base for a particular direction or area of activity, thematic compilation of legislation on specific issues. • Support of private companies' tenders, other alternative procedures for concluding agreements with counterparties. • Legal advising on pricing, antimonopoly law. • Participation in negotiations, providing recommendations on propositions received from counterparties and on the draft contracts; legal support and control over observance of legislation in the performance of contracts, application of financial sanctions etc; providing recommendations for amendments to contracts, for statutory documents due to changes in the current legislation. • Control over the observance of the currency legislation, of the tax law, of the antimonopoly law, of the corporate law. • Prejudicial adjustment of conflicts. • Representation in state authorities and courts on issues of intellectual property, on issues of special measures of the Ministry of Economy of Ukraine on imports, on issues of application of special sanctions of the Ministry of Economy of Ukraine in forms of temporary suspension of foreign economic activity or individual licensing regime of FEA, on issues of obtaining of individual licenses of the Ministry of Economy of Ukraine on the foreign trade operations. • Services in the field of consumer protection from the position of the manufacturer (seller, importer) (label checking and accompanying documents for correctness and compliance with the requirements for mandatory information, compilation and/or translation of regulatory documentation regarding labels, development of methods and/or recommendations for meeting the requirements legislation in the field of consumer protection). • Representation in state bodies and institutions on any questions, preparation of responses to inquiries of state bodies, sending lawyer requests to collect information and documents in order to protect the interests of the business. Representing the interests of business entities during inspections by tax and other regulatory
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	authorities, preventive advice before inspections, appealing the results of inspections in administrative and judicial procedures. • Labor relations (full support including registration of labor contracts, job descriptions, local acts (internal labor regulations, regulations on discipline, etc.), registration of hiring and dismissal of employees, keeping employees' personal files, drawing up orders and instructions, consulting on labor relations, registration on behalf of representative offices of foreign companies of employees in the General Direction in service of foreign representative offices). • Advising on tax legislation issues (including tax rates and fees, tax regimes, transfer pricing, controlled foreign companies, etc.). • Analysis of the legislation of foreign states (including on the subject of starting a business, taxation systems, business practices, opening representative offices, etc.), studying and consulting on certain issues of foreign jurisdictions and foreign law enforcement practices (analysis of court decisions, key thematic regulatory documents, regulations, etc.). • Consulting and representation on antitrust relations and unfair competition, representation in the bodies of the Antimonopoly Committee of Ukraine. • Representation in the Ministry of Economy of Ukraine (appeal against decisions on the application of sanctions, obtaining individual licenses for foreign economic operations, etc.). • Control over changes in the regulatory framework for a specific area or field of activity, a thematic selection of legislation on specific issues, provision of recommendations regarding amendments to contracts, constituent documents in connection with changes in current legislation. • Legal formalization of the construction of distribution and dealer networks (drawing up distribution and dealer agreements, documentation on interaction between participants in the distribution network, etc.). • Consulting and drafting documents in the direction of marketing support for business (drafting marketing contracts, contracts for the provision of advertising services, contracts for marketing research, contracts for the production and distribution of marketing materials and/or information about the company/product/brand, drafting marketing programs, programs for actions, preparation of local regulatory documents, orders in the field of marketing support/business promotion). • Advising on the opening and implementation of production activities in Ukraine (direct production, blending, etc.), drawing up the forms of the necessary documents. • Participation in negotiation processes, provision of assessment and recommendations on proposals and draft contracts received from contractors; legal support and control over compliance with the law in the execution of contracts, the application of contractual financial sanctions, etc. • Registration of the confidentiality regime and protection of commercial secrets, protection of personal data (drawing up the relevant provisions, instructions, obligations, forms, receipts, etc.). • Obtaining of work permits for foreign citizens in Ukraine, obtaining of residence permits in Ukraine. • Legal support of the interests of legal entities and individuals during criminal procedural actions (search, temporary seizure and seizure of property, testimony, etc.). • Consulting and representation of individuals on any issues (civil law relations, taxation, inheritance law, family law, copyright and related rights, consumer protection, relations with banks and insurance companies, administrative and criminal legal relations, etc.). • Bankruptcy of legal entities and individuals (including initiation of the
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	procedure). • Monitoring of advertising materials, speeches of competitors' representatives in the media, their analysis for compliance with the client's business reputation, fair competition; preparation and submission of procedural documents on violations of the law by competitors, development of a substantiated legal position and schemes of procedural actions to protect the interests of the client. • Legal support in the spheres of land and agricultural legal relations (operations with land plots, land shares, creation and operation of farms, etc.). • Provision of related services for business (translation services of legal, economic, financial, accounting, business documentation; consulting on commercial activities and management; selection of regulations or drafting legal opinions before negotiations, business trainings and seminars, etc.). <u>August 2007 - December 2013</u> Lawyer in <i>the TNK-BP Lubricants</i> (one of the subsidiaries of British Petroleum in Ukraine) Contract work, formation/optimization of document flow, consulting on legal issues, registration/re-registration of legal entities, making changes. Labor relations. Corporate legal relations (drafting constituent documents, minutes of general meetings of founders, decisions of owners, drafting local regulatory documents of various directions). Intellectual property (drafting and proofreading license and sublicense agreements, analysis of materials on infringement of intellectual property rights and development of a strategy for protection, legal protection of intellectual property rights in the context of antitrust relations, customs relations, advising on new projects involving intellectual property). Legal advising on pricing, antimonopoly law. Advising on tax legislation issues. <u>July 2004 - November 2004</u> Freelance worker of <i>the National Depository of Ukraine</i> on providing legal services (a term contract) <u>June 2003 - January 2004</u> Lawyer in the <i>"Kyiv specialized administration of mechanization", JSC</i> (a term contract for performing a specific job) Setting up the legal service; work with statutory documents; development of regulations about structural units; development of a mechanism of protection of trade secrets; advising on employment law; preparation of contracts between the founders and management; representation in licensing system; legal support of foreign economic activity; development of model supply contracts, model sales contracts, transportation agreements, lease contracts, storage contracts, loan agreements, contracts to conduct mechanized and technological works in construction and other contracts. <u>December 2001 - June 2004</u> Lawyer in the legal service of <i>the National Depository of Ukraine</i> Analysis of institutions and mechanisms of the stock market; development of propositions for improving the stock market; contract and claim work; representation in economic courts, courts of law, state authorities and other structures; office paperwork and work with databases; advisory and analytical work; preparation and registration of statutory documents; participation in the preparation of legal act drafts; advising on employment law; legal support of routine activity of organisation etc.
Skills:	Studying at ITEA under the IT-Generation program.

		Online video courses in FrontEnd Development from ITVDN, CiberBionic Systematics, other courses on YouTube and the Internet. Specialized literature on HTML5, CSS3 and JavaScript. Independent practice in the layout of websites. Ability to work with various office programs, online services, programming languages, databases, specialized frameworks and resources (MS Office, GoogleDrive, Outlook Express, The Batt, Fine Reader, ACDSee, Foxit Reader, Acrobat Reader, Prompt, HTML5, CSS3, JavaScript, TypeScript, Bootstrap, Webpack, Git, GitHub, Figma, Photoshop, Photopea, Sublime Text, Emmet, Visual Studio, Visual Studio Code, Koala, PerfectPixel, Sass, Scss, SQL Server Management Studio (SSMS), Tools for programming PLC and automated equipment (Ladder Diagram, PLC Simulator Online, OWEN Logic, Verilog, VHDL, EDA playground, DCON Utility), Stream programming tools (Node-RED based on Node.js) etc.), banking systems, electronic document management systems Directum (Citrix), etc.
Languages:		Ukrainian – Native, English – Advanced, French – Advanced, Polish – Beginner, moscovite – Fluent
Other:		International driver's license, significant driving experience, shooting skills with various types of weapons, UGV and FPV control, tactical medicine (TCCC (ASM) protocol)

**The list
of seminars, trainings, advanced training courses**

The title of seminar, training, advanced training course	The operator
HTML5, CSS3, JavaScript	ITEA
JavaScript Professional	ITEA
FrontEnd Professional	ITEA
Bits and bytes of a computer network	Google
Operating Systems	Google
Basics of technical support	Google
System administration and IT services infrastructure	Google
IT security: protection against digital cyber fraud	Google
Professional IT&Tech support (full 6-month course)	Google
FullStack Developer	Genius
Introduction to GDPR: General Data Protection Regulation	UCL (University College London)
Understanding the GDPR	University of Groningen
Digital Skills: Artificial Intelligence	Accenture
Construction Project Management: An Introduction	Coventry University
An Introduction to Building Information Modelling	Coventry University
Principles of Service Management	Hanken School of Economics
Cryptocurrency and blockchain technology	University of Michigan
Agriculture, Economics and Nature	The University of Western Australia
HTML5&CSS3 (basic + advanced)	ITVDN
JavaScript (basic + advanced)	ITVDN
TypeScript Fundamentals	ITVDN
Angular JS (basic)	ITVDN
Git (basic)	ITVDN
Git for distributed development of software	The Linux Foundation
CS50: Programming basics for business professionals	Harvard University
Python (starter)	CyberBionic Systematics
HTML5 and CSS3	Purple.com
Computer Programming for Everyone	University of Leeds
Microsoft Future Ready: Developing Applications Using Javascript	CloudSwyft Global Systems, Inc.
SQL Basic	ITVDN
Introduction to Blockchain Technology and Applications	University College London
Decentralised Finance: Blockchain, Ethereum, and The Future of Banking	RMIT University
Circular Business Models for Sustainable Urban Food Systems	EIT Food
The Laws of Digital Data, Content and Artificial Intelligence (AI)	The University of Law
Designing and Building with Healthier Materials	Parsons School of Design
International Affairs: Globalisation	The Graduate Institute of International and Development Studies
Global Resource Politics	Hanyang University
Transforming Energy Systems: Why Governance Matters	University of Exeter
Innovation: the Food Industry	University of Leeds
Logical and Critical Thinking	The University of Auckland
Developing Your Research Project	University of Southampton
Introduction to Nutrition and Food Safety	Taipei Medical University
Learning online: managing Your online identity	University of Leeds
Blended learning essentials: developing digital skills	University of Leeds

Introduction to Financial Accounting	University of Padova
Management and Leadership: Growing as a Manager	The Open University
Global Studies: The Future of Globalization	Grenoble Ecole de Management
Create a Social Media Marketing Campaign	University of Leeds
Create a Professional Online Presence	University of Leeds
Collaborative Working in a Remote Team	University of Leeds
Effective completion of sales negotiations	Intake-Consult
Project approach to sales management	Intake-Consult
First Meeting Needs Finding Techniques	Intake-Consult
Work with the procurement committee of industrial enterprises	Intake-Consult
Customer segmentation. Principles of working with target customers	Intake-Consult
Business audit of target customers and development programs	Intake-Consult
Management styles and trading team performance	Intake-Consult
Emotional Intelligence and Sales Performance	Intake-Consult
Restoring of the solvency of an individual. Practical aspects of the application of the Code of Ukraine on bankruptcy proceedings	Ukrainian National BAR Association
Article 1 of the First Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms	Dnipropetrovsk region BAR association
Judicial control in the administrative process - an effective tool for enforcing decisions	Ukrainian National BAR Association
Business integration into Europe: legal and practical aspects	Dnipropetrovsk region BAR association
Some aspects of enforcement proceedings	Dnipropetrovsk region BAR association
Standards of recourse to the case law of the European Court of Human Rights when applying precautionary measures	Dnipropetrovsk region BAR association
Liability of lawyers for violation of the procedure of financial monitoring	Ukrainian National BAR Association
Tax changes under the law №466-IX. Everything has changed	Ukrainian National BAR Association
Court is not a panacea. Alternative ways of dispute resolution	Ukrainian National BAR Association
Disciplinary liability of a lawyer. Risks of violation of the rules of lawyer ethics	Qualification and disciplinary commission of the Bar of Dnipropetrovsk region
The practice of consideration of tax disputes by the Administrative Court of Cassation within the Supreme Court	Ukrainian Bar Association
Measures to counteract COVID-19 and protect investors' rights: is there a limit to state measures?	Ukrainian Bar Association
Land reform: what is the legislator preparing for agrarian business besides opening the land market?	Ukrainian Bar Association
Procedural filters of cassation review of court decisions in criminal proceedings	Ukrainian Bar Association
The category of "invalidity" in judicial practice	Ukrainian Bar Association
Property barrier to access to justice	Rivne region BAR association
Current issues of the tax police activity	Kyiv region BAR association
Russia's responsibility for war crimes in Ukraine: case before the International Court of Justice and other international instances	Hight School of Advocacy of The Ukrainian National BAR Association (HSA of The UNBA)
Labor rights during martial law	HSA of The UNBA
Implementation of corporate rights under martial law	HSA of The UNBA
International crimes: definition, differences, criminal liability	HSA of The UNBA
The Review of court decisions in criminal proceedings. Execution of verdicts.	Legal High School

Corruption crimes and administrative offenses related to corruption	Kyiv region BAR association
Pre-trial investigation: work on miscalculations of lawyers	Kyiv region BAR association
General issues of the appointment and conduct of forensic examinations	Kyiv region BAR association
Division of property of the couple: trends of the arbitrage practice	Kyiv region BAR association
Emphyteusis as an alternative to renting	Kyiv region BAR association
Application of forensic economic expertise in tax audits and disputes	Kyiv region BAR association
Purchase and sale of agricultural land: regulatory and legal regulations and court cases	Kyiv region BAR association
Preparation and appointment of computer technical expertise and electronic communications expertise	Kyiv region BAR association
Secrets of prompt engineering in the work of a lawyer	Kyiv region BAR association
Digital evidence in criminal proceedings	HSA of The UNBA
Business Research Methods II: Research Design and Data Collection	Taipei Medical University
Business Ethics: Exploring Big Data and Tax Avoidance	University of Leeds
Protecting Health Data in the Modern Age	University of Groningen
Chemical Engineering: Shaping a Sustainable Future	University of Leeds
Artificial Intelligence in Bioinformatics	Taipei Medical University
Transport Systems: Global Issues and Future Innovations	University of Leeds